



## CHAPTER cv.

An Act to authorise the Felixstowe and Walton Waterworks Company to construct new works and to raise additional capital to extend the Company's limits of supply to change the name of the Company and for other purposes.

A.D. 1931.

[31st July 1931.]

**W**HEREAS the Felixstowe and Walton Waterworks Company (in this Act called "the Company") were incorporated by the Felixstowe and Walton Waterworks Act 1895 and are empowered to supply water within the limits in the county of East Suffolk set forth in the said Act :

And whereas it is expedient that the limits within which the Company may supply water should be extended :

And whereas the demand for water within the existing limits of supply of the Company has increased and is increasing and for enabling the Company to meet such demand and to supply water in the limits of supply as extended by this Act it is expedient that the Company should be empowered to make and maintain the works and to acquire the lands hereinafter respectively described :

And whereas a statement showing the capital of the Company and the amounts authorised to be raised raised and remaining to be raised by them on mortgage



A.D. 1931. or by the creation and issue of debenture stock is set forth in the First Schedule to this Act :

And whereas it is expedient that the Company should be authorised to raise additional capital and to borrow further moneys for the purposes of this Act and of their undertaking and that such other financial provisions should be made as are in this Act contained :

And whereas it is expedient to change the name of the Company :

And whereas it is expedient that such further powers should be conferred upon the Company and that such other provisions should be made as are in this Act contained :

- And whereas plans showing the lands required or which may be taken or used compulsorily for the purposes or under the powers of this Act such plans showing the lines or situation of the said works and sections showing the levels of such works with a book of reference to such plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the said lands were duly deposited with the clerk to the county council of the county of East Suffolk and are in this Act respectively referred to as the deposited plans sections and book of reference :

And whereas the objects of this Act cannot be attained without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

#### PRELIMINARY.

Short and collective titles.

1. This Act may be cited as the Felixstowe and District Water Act 1931 and the Act of 1895 the Act of 1911 and this Act may be cited together and are in this Act referred to as the Felixstowe and District Water Acts 1895 to 1931.

Incorporation of Acts.

2. The following Acts and parts of Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of the Felixstowe and



District Water Acts 1895 to 1931) are hereby incorporated with this Act (namely) :— A.D. 1931.

- (1) The Waterworks Clauses Acts 1847 and 1863 except the words “with the consent in writing” of the owner or reputed owner of any such “house or of the agent of such owner” in section 44 of the Waterworks Clauses Act 1847 :
- (2) The Lands Clauses Acts :

Provided always that any question of disputed compensation under this Act or any Act incorporated therewith (other than a question required to be determined by two justices) shall be determined by a single arbitrator to be agreed upon between the Company and the person claiming the compensation or in default of such agreement appointed by the Minister of Health on the application of either party :

Provided also that section 34 of the Lands Clauses Consolidation Act 1845 shall be read and have effect subject to the following proviso in all cases in which notice of the effect of such proviso accompanies any offer of purchase money and compensation made by the promoters :—

Provided that in the event of a party to whom a sum shall have been offered by the promoters at least ten days before the commencement of the hearing before the arbitrator failing within ten days of the making of the offer to notify the promoters in writing that he accepts the same all the costs and expenses of the promoters of and incidental to the arbitration incurred by them after the date of the offer shall in the event of his subsequently accepting such offer be borne by him including any fees and expenses of the arbitrator :

- (3) The clauses and provisions of the Companies Clauses Consolidation Act 1845 with respect to the following matters (namely) :—

The distribution of the capital of the Company into shares ;



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The transfer or transmission of shares ;

The payment of subscriptions and the means of enforcing the payment of calls ;

The forfeiture of shares for non-payment of calls ;

The remedies of creditors of the Company against the shareholders ;

The borrowing of money by the Company on mortgage or bond ;

The consolidation of the shares into stock ;

The general meetings of the Company and the exercise of the right of voting by the shareholders ;

The making of dividends ;

The giving of notices ; and

The provision to be made for affording access to the special Act by all parties interested :

- (4) The Companies Clauses Act 1863 as amended by subsequent Acts :

Provided that in the application to the Company of Part III (relating to debenture stock) of the Companies Clauses Act 1863 section 22 shall be read as if the words "and to the same amount as" were omitted therefrom :

- (5) The provisions of the Railways Clauses Consolidation Act 1845 with respect to the temporary occupation of lands near the railway during the construction thereof Provided that in construing the said provisions for the purposes of this Act the expression "the railway" shall mean the works by this Act authorised and "the centre of the railway" shall mean the centre lines of such works.

Interpreta-  
tion.

3. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings unless there be something in the subject or



context repugnant to such construction      And in this      A.D. 1931.  
Act—

- “ The Company ” means the Felixstowe and Walton Waterworks Company ;
- “ The Act of 1895 ” means the Felixstowe and Walton Waterworks Act 1895 ;
- “ The Act of 1911 ” means the Felixstowe and Walton Waterworks Act 1911 ;
- “ The Consent of 1921 ” means the Felixstowe and Walton Waterworks Company (Capital Issues) Consent 1921 ;
- “ The existing limits of supply ” means the area within which the Company are by the Act of 1895 authorised to supply water ;
- “ The added limits of supply ” means the areas added by this Act to the existing limits of supply ;
- “ The limits of supply ” means the limits for the time being of the Company for the supply of water ;
- “ The new waterworks ” means the works described in subsection (1) of the section of this Act the marginal note whereof is “ Power to make works ” ;
- “ The works ” means the works authorised by this Act ;
- “ The deposited plans ” “ the deposited sections ” and “ the deposited book of reference ” mean respectively the plans sections and book of reference deposited with the clerk to the county council for the county of East Suffolk in relation to the Bill for this Act ;
- “ The Ordnance map ” means the Ordnance map on the scale of 1/2500 and references to sheets of the Ordnance map are to the relative sheets for Suffolk (East) ;
- “ The undertaking ” means the undertaking of the Company for the time being authorised ;
- “ The directors ” means the directors of the Company.



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## LIMITS OF SUPPLY.

Extension  
of limits of  
supply.

4.—(1) The limits within which the Company may supply water and exercise the powers conferred upon them by the Felixstowe and District Water Acts 1895 to 1931 shall extend to and include in addition to the existing limits of supply the parishes of Bucklesham Falkenham Foxhall Kirton and Newbourn in the rural district of Woodbridge in the county of East Suffolk and so much of the parishes of Trimley St. Martin and Trimley St. Mary in the said rural district as is not comprised within the existing limits of supply.

(2) Subject to the provisions of this Act the Company within the added limits of supply shall have and may exercise all and the like powers rights privileges and authorities and be subject to all and the like duties and obligations as they have and are subject to within the existing limits of supply.

(3) The Company may continue maintain and use any water mains pipes and other works belonging to or vested in them at the date of the passing of this Act within the added limits of supply as if the same had been laid down or constructed under the powers of this Act and the provisions of the Felixstowe and District Water Acts 1895 to 1931 shall apply to the said mains pipes and works in all respects as if the same had been laid down or constructed under the authority of this Act.

Provisions  
on failure of  
Company to  
supply.

5. If after the expiration of seven years from the passing of this Act the Company are not furnishing or prepared on demand to furnish a sufficient supply of water in accordance with the Felixstowe and District Water Acts 1895 to 1931 as for the time being modified by any order made under the Water Undertakings (Modification of Charges) Act 1921 in any parish or part of a parish in the added limits of supply the local authority of the district comprising such parish or part of a parish may provide a supply in such parish or part of a parish in accordance with the provisions of the Public Health Act 1875 or the local authority or any company body or person may apply for an Act of Parliament or Provisional Order for the purpose of providing such a supply and for the repeal of the powers of the Company in that behalf.



If any difference shall arise between the Company and any such local authority company body or person as to the sufficiency of the supply of water in such parish or part of a parish such difference shall be settled by an arbitrator to be appointed on the application of either party by the Minister of Health. A.D. 1931.

#### WORKS AND LANDS.

6.—(1) Subject to the provisions of this Act the Company may in the rural district of Woodbridge and county of East Suffolk in the lines or situation and upon or under the lands delineated on the deposited plans and described in the deposited book of reference and according to the levels shown on the deposited sections make and maintain— Power to make works.

In the parish of Newbourn—

(1) A weir (No. 1) across the watercourse (Newbourn Stream) commencing at a point on the western bank of that stream 3·4 chains or thereabouts measured in a southerly direction from the northern corner of the enclosure numbered 40 on the Ordnance map sheet LXXVI. 16 edition 1927 and terminating at a point on the eastern bank of the said stream 0·3 chain or thereabouts measured in a southerly direction from the western corner of the enclosure numbered 46 on the said sheet :

(2) A line or lines of pipes (No. 1) with intake commencing at or near the termination of the said weir (No. 1) and terminating in the pumping station (No. 1) next described :

(3) A pumping station (No. 1) situate in the said enclosure numbered 46 :

(4) A line or lines of pipes (No. 2) with intake for collecting the waters of the springs situate in the enclosure numbered 50 on the said sheet LXXVI. 16 commencing at a point 1·5 chains or thereabouts measured in a north-easterly direction from the southernmost corner of the said enclosure and terminating in the said pumping station (No. 1).



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In the said parish of Newbourn and parish of Bucklesham—

(5) A line or lines of pipes (No. 3) commencing in the said pumping station (No. 1) and terminating in the pumping station (No. 2) hereinafter described.

In the said parish of Bucklesham—

(6) A weir (No. 2) across the Mill River commencing at a point on the northern bank of that river 12·3 chains or thereabouts measured in a westerly direction from the south-eastern corner of the enclosure numbered 201 on the Ordnance map sheet LXXXIII. 4 edition 1926 and terminating on the southern bank of the said river at a point 3·6 chains or thereabouts measured in a westerly direction from the north-eastern corner of the enclosure numbered 200 on the said sheet LXXXIII. 4 :

(7) A line or lines of pipes (No. 4) commencing at or near the termination of the said weir (No. 2) and terminating in the pumping station (No. 2) next described :

(8) A pumping station (No. 2) situate in the said enclosure numbered 200.

In the said parish of Bucklesham and the parishes of Kirton Trimley St. Martin and Trimley St. Mary—

(9) A line or lines of pipes (No. 5) commencing in the said pumping station (No. 2) and terminating in the service tank next described.

In the said parish of Trimley St. Mary—

(10) A service tank situate in the south-easternmost corner of the enclosure numbered 85 on the Ordnance map sheet LXXXIII. 16 edition 1926 :

(11) A line or lines of pipes (No. 6) commencing by a junction with the said line or lines of pipes (No. 5) in Drab's Lane at a point 12 chains or thereabouts from the southern end thereof and terminating by a junction with the existing pipes of the Company in the highway opposite to the said end of Drab's Lane.



(2) In addition to the foregoing works the Company may upon or under the said lands make and maintain all such buildings machinery works and apparatus of whatever character as may be necessary or convenient in connection with or subsidiary to the new waterworks or any of them but nothing in this section shall exonerate the Company from any action indictment or other proceeding for nuisance in the event of any nuisance being caused or permitted by them. A.D. 1931.  
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7. Subject to the provisions of this Act the works shall for all purposes whatsoever form part of and be comprised in the undertaking. Works to form part of undertaking.

8. In the construction of any of the new waterworks or any part of any such work the Company may deviate laterally to any extent not exceeding the limits of deviation shown on the deposited plans and where on any road no such limits are shown the boundaries of such road (including for this purpose any roadside waste forming part of or adjoining such road) shall be deemed to be such limits and they may also deviate vertically from the levels shown on the deposited sections to any extent : Limits of deviation.

Provided that—

- (a) the Company shall not construct any weir of a greater height above the general surface of the ground than shown on the deposited sections and three feet in addition ;
- (b) except for the purpose of crossing over a stream no part of any line of pipes shall be raised above the surface of the ground unless and except so far as is shown on the deposited sections.

9. Subject to the provisions of this Act the Company may pump collect impound take use divert and appropriate for the purposes of the undertaking the waters of the Newbourn Stream and the Mill River and all such other streams and springs and waters which will or may be taken or intercepted by means of the works. Power to take waters.

10.—(1) The Company shall not under the powers of this Act take any water flowing in the Newbourn Stream during such time as the flow in the Newbourn Restrictions on taking water from



A.D. 1931. Stream immediately below the weir (No. 1) by this  
— Act authorised shall be less than at the rate of fifty  
Newbourn thousand gallons per day of twenty-four hours.  
Stream and  
Mill River.

(2) The Company shall not under the powers of this Act take any water flowing in the Mill River during such time as the flow in the Mill River immediately below the weir (No. 2) by this Act authorised shall be less than at the rate of five hundred thousand gallons per day of twenty-four hours.

(3) For the purpose of measuring the water flowing in the Newbourn Stream immediately below the said weir (No. 1) the Company shall before taking such water provide and shall thereafter maintain a proper and suitable measuring gauge through or over which the water in the Newbourn Stream shall pass.

(4) For the purpose of measuring the water flowing in the Mill River immediately below the said weir (No. 2) the Company shall before taking such water provide and shall thereafter maintain a proper and suitable measuring gauge through or over which the water in the Mill River shall pass.

(5) The said gauges respectively shall be open at all reasonable times to the inspection and examination of all persons interested in the flow of the Newbourn Stream and the Mill River as the case may be or their duly accredited representatives.

(6) In case of any neglect on the part of the Company to maintain the said gauges respectively in a state of efficiency or in case of any other neglect by or in consequence of which water shall be taken by the Company in contravention of the provisions of this section the Company shall for every day on which such neglect occurs forfeit and pay to each of the persons injuriously affected thereby the sum of five pounds and shall in addition make compensation for any loss or injury sustained by such persons.

(7) The provisions of this section shall subject to the provisions of this Act be accepted and taken by all persons interested as full compensation for all water which the Company may collect impound take use divert or appropriate from the Newbourn Stream and the Mill River under the powers of this Act.



**11.**—(1) The Company shall before supplying for domestic purposes any water pumped collected impounded taken diverted or appropriated from the Newbourn Stream and the Mill River or either of them under the powers of this Act so treat the same as to make it comply with such standard of purity as may from time to time be prescribed by the Minister of Health Provided that the Company shall not adopt any method of treatment which does not include chlorination without the consent of the Minister of Health.

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Provisions  
as to puri-  
fication of  
water.

(2) The Company shall make provision for the carrying out by a duly qualified chemist and bacteriologist at not greater intervals than once in every month of such tests and analyses as may be necessary for an efficient control of the quality of the water and copies of the results of any such test and analysis shall on request made at any time within one year from the making thereof be supplied to the Minister of Health and be open to the inspection of the county council of the administrative county of East Suffolk the urban district council of Felixstowe and the rural district council of Woodbridge at the head office of the Company and the said councils or any of them may take copies of the results of any such test and analysis free of charge.

(3) In the event of the Company supplying any water in contravention of the provisions of this section they shall be liable on conviction on information laid by or on behalf of the said county council urban district council or rural district council to a penalty not exceeding twenty-five pounds for every day on which such contravention occurs.

**12.**—(1) (i) If at any time before the Company have commenced to supply water from the Newbourn Stream and the Mill River or either of them the Woodbridge Rural District Council (in this section referred to as "the council") shall require a supply of water in bulk for use in so much of the district of the council as is not comprised within the limits of supply the Company shall subject to the provisions of this section and within six months after the receipt of the notice hereinafter in this paragraph of this subsection referred to supply to the council such daily quantity of water

Supply of  
water to  
Woodbridge  
Rural  
District  
Council.



A.D. 1931. not being less than ten thousand gallons nor more than twenty-five thousand gallons as the council may by notice in writing to the Company demand and the council shall enter into a binding contract with the Company to take and pay for the daily quantity so demanded during a period of five years from the date of the commencement of a supply under this paragraph of this subsection.

(ii) If before the Company have commenced to supply water from the Newbourn Stream and the Mill River or either of them and not less than two years before the expiry of any contract entered into under paragraph (i) of this subsection or of any contract entered into under this paragraph of this subsection the council give notice in writing to the Company requiring the Company to supply water in bulk to the council after the expiry of any contract entered into under this subsection and in force at the date of the giving of the notice referred to in this paragraph of this subsection (in this subsection referred to as "the current contract") the Company shall subject to the provisions of this section and as from the expiry of the current contract supply to the council for use as aforesaid such daily quantity of water not being less than ten thousand gallons nor more than fifty thousand gallons as may be specified in the notice and the council shall enter into a binding contract with the Company to take and pay for the daily quantity so demanded during a period of five years from the date of the expiry of the current contract.

(iii) The supply given by the Company to the council under this subsection shall be taken at a uniform rate per day at such convenient points (not exceeding three) upon the line of pipes (Work No. 2) authorised by the Act of 1911 as may for each period of five years be agreed upon between the council and the Company or as failing such agreement may be determined in respect of each period of five years by arbitration under this section.

(iv) The price to be paid by the council to the Company for the water to be supplied under this subsection shall in respect of each period of five years failing agreement be determined by arbitration under this section.



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(2) (i) If (in case the council and the Company shall have entered into any contract for a supply of water under subsection (1) of this section) at any time after the expiration of such contract and after the Company have commenced to supply water from the Newbourn Stream and the Mill River or either of them or if (in case the council shall not have given notice demanding a supply of water under subsection (1) of this section) at any time after the Company have commenced to supply water from the Newbourn Stream and the Mill River or either of them the council shall require a supply of water in bulk for use in so much of the district of the council as is not comprised within the limits of supply the Company shall subject to the provisions of this section and as from such date as may be agreed between the council and the Company or as failing such agreement may be determined by arbitration under this section supply to the council and the council shall accept and take such daily quantity of water not exceeding fifty thousand gallons as the council may by notice in writing to the Company demand. Such supply shall be taken at a uniform rate per day at such point or points and at such price and on such other terms and conditions as may be agreed between the council and the Company or as failing such agreement may be determined by arbitration under this section.

(ii) If and so long as and to the extent that (upon the basis of taking into account the yield of the Rushmere pumping station (Work No. 1 authorised by the Act of 1911) and of the sources of supply of water of the Company under this Act and also of all other effective sources of supply of water for the time being used by the Company) any supply of water by the Company to the council under this subsection would interfere with the supply of water for domestic purposes (whether the same be taken by meter or otherwise) by the Company to consumers within the limits of supply the Company shall be entitled to withhold or suspend wholly or partly the supply of water to the council under this subsection but save as aforesaid the supply of water by the Company for any other purpose than as aforesaid shall not have priority over such last mentioned supply.

(3) All water supplied to the council under the provisions of this section shall be measured by means



A.D. 1931. of a meter or meters to be provided fixed and maintained by the Company at their own cost provided that the council shall pay a reasonable rent for such meter or meters.

The council shall at all reasonable times be at liberty to inspect such meter or meters and to test the accuracy thereof.

(4) The register of such meter or meters shall be prima facie evidence of the quantity of water supplied by the Company through such meter or meters.

(5) The Company shall not be liable for any damage loss or expense caused by any failure in the supply of water to the council under subsection (1) or (2) of this section if such failure be occasioned by frost drought strikes or any unavoidable cause or accident or during necessary repairs renewals or cleansing.

(6) All payments for the water supplied to the council under this section shall be made quarterly on the first day of January the first day of April the first day of July and the first day of October in every year.

(7) The Company shall give to the council notice in writing when they have commenced to supply water from the Newbourn Stream and the Mill River or either of them.

(8) Any difference between the Company and the council under this section and any matter referred to arbitration under this section shall be determined by an engineer to be appointed (failing agreement) on the application either of the Company or of the council (after notice in writing to the other of them) by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 or of any statutory modification or re-enactment thereof for the time being in force shall apply to any such determination or arbitration.

(9) The Company and the council may agree in writing for any variation or alteration in the provisions of this section.

Limiting  
powers of  
Company  
to abstract  
water.

**13.** The Company shall not construct any works for taking or intercepting water from any lands acquired by them unless the works are authorised by and the lands upon which the same are to be constructed are specified in this or some other Act of Parliament.



14. If the new waterworks are not completed within ten years from the passing of this Act then on the expiration of that period the powers by this Act granted for the making of the new waterworks or otherwise in relation thereto shall cease except as to such of them or so much thereof respectively as shall then be completed but nothing in this section contained shall restrict the Company from at any time extending enlarging altering renewing or removing any of the new waterworks or from exercising any of the powers with respect to the construction of works conferred by the Acts incorporated with this Act from time to time as occasion may require.

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Period for  
completion  
of works.

15.—(1) The Company during the execution and for the purposes of any of the works may break up and also temporarily stop up and interfere with any street and may for any reasonable time divert the traffic therefrom and prevent all persons other than those bona fide going to or returning from any house in the street from passing along and using the same.

Temporary  
stoppage of  
streets.

(2) The Company shall provide reasonable access for foot passengers bona fide going to or returning from any such house.

(3) The Company shall also provide reasonable access for foot passengers and vehicular traffic bona fide going to or from any railway station or depot of any railway company near to which any such work is being executed.

16.—(1) Where any work constructed by the Company under the powers of this Act and situate wholly or partially on under or over the shore or bed of the sea or of any creek bay arm of the sea or navigable river communicating therewith below high-water mark of ordinary spring tides is abandoned or suffered to fall into decay the Board of Trade may by notice in writing either require the Company at their own expense to repair and restore such part of such work as is situate below high-water mark of ordinary spring tides or any portion thereof or require them to abate or remove the same and restore the site thereof to its former condition to such an extent and within such limits as the Board of Trade may think proper.

Abatement  
of work  
abandoned  
or decayed.



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(2) If during the period of thirty days from the date when the notice is served upon the Company they have failed to comply with such notice the Board of Trade may execute the works required to be done by the notice at the expense of the Company and the amount of such expense shall be a debt due from the Company to the Crown and shall be recoverable either as a debt due to the Crown or summarily as a civil debt.

Works below  
high-water  
mark not  
to be con-  
structed  
without  
consent of  
Board of  
Trade.

**17.** The Company shall not under the powers of this Act construct on under or over the shore or bed of the sea or of any creek bay arm of the sea or navigable river communicating therewith below high-water mark of ordinary spring tides any work without the previous consent of the Board of Trade to be signified in writing under the hand of one of the secretaries or assistant secretaries of the Board of Trade and then only according to such plan and under such restrictions and regulations as the Board of Trade may approve of in writing under hand as last aforesaid and where any such work may have been constructed the Company shall not at any time alter or extend the same without obtaining previously to making any alteration or extension the like consent or approval. If any work be commenced altered extended or completed contrary to the provisions of this section the Board of Trade may abate and remove the same and restore the site thereof to its former condition at the cost and charge of the Company and the amount of such costs and charges shall be a debt due from the Company to the Crown and shall be recoverable either as a debt due to the Crown or summarily as a civil debt.

Power to  
acquire  
lands.

**18.** Subject to the provisions of this Act the Company may enter upon take and use such of the lands delineated on the deposited plans and described in the deposited book of reference as may be required for the works.

Period for  
compulsory  
purchase of  
lands.

**19.** The powers of the Company for the compulsory purchase of lands for the purposes of this Act shall cease after the first day of October nineteen hundred and thirty-four.

Compensa-  
tion in case  
of recent  
improve-  
ments &c.

**20.** In settling any question of disputed purchase money or compensation for lands acquired by the Company under the powers of this Act the tribunal settling the same shall not award any sum of money for or in



respect of any improvement or alteration made or any building erected after the thirty-first day of October nineteen hundred and thirty if in the opinion of the tribunal the improvement alteration or building in respect of which the claim is made was made or erected with a view to obtaining or increasing compensation nor in the case of any estate or interest in the lands created after the said date which in the opinion of the tribunal was created with a view to obtaining or increasing compensation shall any sum of money be awarded so as to increase the total amount of compensation which would otherwise have been required to be paid in respect of the acquisition of such lands by the Company.

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21. The Company and their surveyors officers contractors and workmen may from time to time at all reasonable times in the day upon giving in writing for the first time twenty-four hours and afterwards from time to time twelve hours' previous notice enter upon and into the lands by this Act authorised to be taken and used as aforesaid or any of them for the purpose of surveying and valuing the said lands without being deemed trespassers and without being subject or liable to any fine penalty or punishment on account of entering or continuing upon any part of the said lands.

Power to  
Company to  
enter upon  
property for  
survey and  
valuation.

22. The tribunal to whom any question of disputed compensation under this Act is referred shall if so required by the Company award and declare whether a statement in writing of the amount of compensation claimed has been delivered to the Company by the claimant giving sufficient particulars and in sufficient time to enable the Company to make a proper offer and if the tribunal shall be of opinion that no such statement giving sufficient particulars and in sufficient time shall have been delivered and that the Company have been prejudiced thereby the tribunal shall have power to decide whether the claimant's costs or any part thereof shall be borne by the claimant :

Costs of  
arbitration  
in certain  
cases.

Provided that it shall be lawful for any judge of the High Court to permit any claimant after seven days' notice to the Company to amend the statement in writing of the claim delivered by him to the Company in case of discovery of any error or mistake therein or for any other reasonable cause such error mistake or cause to be



A.D. 1931. — established to the satisfaction of the judge after hearing the Company if they object to the amendment and such amendment shall be subject to such terms enabling the Company to investigate the amended claim and to make an offer de novo and as to postponing the hearing of the claim and as to costs of the inquiry and otherwise as to such judge may seem just and proper under all the circumstances of the case :

Provided also that this section shall be applicable only in cases where the notice to treat under the Lands Clauses Consolidation Act 1845 either contained or was endorsed with a notice of the effect of this section.

Private  
rights of  
way over  
lands taken  
compul-  
sorily.

**23.** All private rights of way over any lands which may be acquired compulsorily under the powers of this Act shall as from the date of the acquisition of such lands be extinguished. Provided that the Company shall make full compensation to all parties interested in respect of any such rights and such compensation shall be settled in manner provided by the Lands Clauses Acts (as modified by this Act) with reference to the taking of lands otherwise than by agreement.

Acquisition  
of lands by  
agreement.

**24.** In addition to any lands which the Company are by any other provisions of the Felixstowe and District Water Acts 1895 to 1931 authorised to acquire the Company may by agreement purchase or take leases of and hold further lands for the purposes of the undertaking or any easement in over or under any such lands or otherwise but the quantity of lands held by the Company in pursuance of this section shall not at any time exceed thirty acres. Provided that the Company shall not create or permit any nuisance on any such lands nor erect any buildings thereon except such as are required for or are connected with or incident to the purposes of the undertaking.

Dwelling-  
houses for  
persons in  
Company's  
employ.

**25.** The Company may purchase or take on lease dwelling-houses for persons employed by them for the purposes of the undertaking and may erect maintain and let dwelling-houses for and to such persons upon any lands for the time being belonging to the Company for the purposes of the undertaking and (subject to the terms of the lease) upon any lands for the time being leased to the Company for the purposes of the undertaking.



**26.** The Company may adapt any land purchased or taken on lease by them under the powers conferred by the Felixstowe and District Water Acts 1895 to 1931 for the purpose of a recreation ground for their employees and may upon such land erect construct and maintain dressing rooms and other buildings and conveniences necessary or appropriate for its use as a recreation ground.

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Recreation  
ground for  
employees.

**27.** Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Company any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Persons  
under dis-  
ability may  
grant ease-  
ments &c.

**28.** And whereas in the construction of the works or otherwise in the exercise by the Company of the powers of this Act it may happen that portions only of certain properties shown or partly shown on the deposited plans will be sufficient for the purposes of the Company and that such portions or some other portions less than the whole can be severed from the remainder of the said properties without material detriment thereto Therefore the following provisions shall have effect :—

Owners may  
be required  
to sell parts  
only of  
certain  
properties.

- (1) The owner of and persons interested in any of the properties whereof the whole or part is described in the Second Schedule to this Act and whereof a portion only is required for the purposes of the Company or each or any of them are hereinafter included in the term "the owner" and the said properties are hereinafter referred to as the "scheduled properties" :
- (2) If for twenty-one days after the service of notice to treat in respect of a specified portion of any of the scheduled properties the owner shall fail to notify in writing to the Company that he alleges that such portion cannot be severed from the remainder of the property



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without material detriment thereto he may be required to sell and convey to the Company such portion only without the Company being obliged or compellable to purchase the whole the Company paying for the portion so taken and making compensation for any damage sustained by the owner by severance or otherwise :

- (3) If within such twenty-one days the owner shall by notice in writing to the Company allege that such portion cannot be so severed the arbitrator or other tribunal to whom the question of disputed compensation shall be submitted (hereinafter referred to as "the arbitrator") shall in addition to the other questions required to be determined by him determine whether the portion of the scheduled property specified in the notice to treat can be severed from the remainder without material detriment thereto and if not whether any and what other portion less than the whole (but not exceeding the portion over which the Company have compulsory powers of purchase) can be so severed :
- (4) If the arbitrator determines that the portion of the scheduled property specified in the notice to treat or any such other portion as aforesaid can be severed from the remainder without material detriment thereto the owner may be required to sell and convey to the Company the portion which the arbitrator shall have determined to be so severable without the Company being obliged or compellable to purchase the whole the Company paying such sum for the portion taken by them including compensation for any damage sustained by the owner by severance or otherwise as shall be awarded by the arbitrator :
- (5) If the arbitrator determines that the portion of the scheduled property specified in the notice to treat can notwithstanding the allegation of the owner be severed from the remainder without material detriment thereto the arbitrator may in his absolute discretion determine and order that the costs charges and expenses



incurred by the owner incident to the arbitration or inquiry shall be borne and paid by the owner :

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- (6) If the arbitrator determines that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto (and whether or not he shall determine that any other portion can be so severed) the Company may withdraw their notice to treat and thereupon they shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice :
- (7) If the arbitrator determines that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto but that any such other portion as aforesaid can be so severed the Company in case they shall not withdraw the notice to treat shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice or such portion thereof as the arbitrator shall having regard to the circumstances of the case and his final determination think fit.

The provisions of this section shall be in force notwithstanding anything in the Lands Clauses Consolidation Act 1845 contained and nothing contained in or done under this section shall be held as determining or as being or implying an admission that any of the scheduled properties or any part thereof is or is not or but for this section would or would not be subject to the provisions of section 92 of the Lands Clauses Consolidation Act 1845.

The provisions of this section shall be stated in every notice given thereunder to sell and convey any premises.

**29.** Notwithstanding anything in this Act (except the provisions of the section of this Act of which the marginal note is "Crown rights") the Company may purchase and acquire an easement or right of constructing maintaining renewing and using or removing

Company may acquire certain easements compulsorily.



A.D. 1931. — the works in under or over any railways rivers navigations and commons and commonable lands without the Company being obliged or compellable to purchase any greater interest in under or over the same respectively.

Power to  
acquire ease-  
ments in  
lieu of lands.

**30.**—(1) The Company may in lieu of acquiring any lands for the purposes of the works where the same are intended to be constructed underground acquire such easements only in such lands as they may require for such purposes and may give notice to treat in respect of such easements describing the nature thereof and the provisions of the Lands Clauses Acts (as modified by this Act) shall apply to and in respect of the acquisition of such easements as fully as if the same were lands within the meaning of those Acts.

(2) As regards any lands in respect of which the Company have acquired easements only under the provisions of this section the Company shall not be required or entitled to fence off or sever such lands from the adjoining lands but the owners or occupiers for the time being shall subject to such easements have the same rights to use and cultivate the said lands at all times as if this Act had not been passed.

(3) Provided always that nothing in this section contained shall authorise the Company to acquire by compulsion any such easement in any case in which the owner in his particulars of claim shall require the Company to acquire the lands in respect of which they had given notice to treat for the acquisition of an easement only and every notice to treat for the acquisition of an easement shall be endorsed with notice of this provision.

Discharge of  
water into  
streams.

**31.**—(1) For the purpose of executing constructing repairing cleansing emptying or examining any reservoir well conduit or line of pipes or other works of the Company the Company may cause the water in any such reservoir well conduit or line of pipes or other works to be discharged into any available stream or watercourse:

Provided that water so discharged shall be as free as may be reasonably practicable from mud or soil or offensive matter and other matter injurious to fish or spawn or spawning beds or food of fish.



(2) In the exercise of the power conferred by this section the Company shall do as little damage as may be and shall make full compensation to all persons interested for all damage sustained by them by reason or in consequence of the exercise of such power the amount of compensation to be settled in case of difference by arbitration by a single arbitrator to be agreed upon between the parties or failing agreement to be appointed by the President of the Institution of Civil Engineers on the application of either party (after notice in writing to the other) and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to the arbitration. A.D. 1931.

(3) The powers of this section shall not be exercised so as to damage the railway or works of the London and North Eastern Railway Company.

**32.** The provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets shall apply with the necessary modifications to the construction laying down erection and maintenance in any street or road within the limits of supply of any discharge pipes telephone or telegraph posts wires conductors or apparatus which the Company may and which they are hereby authorised to lay down or erect for the purposes of the undertaking Provided that any telephone or telegraph posts wires conductors or apparatus laid down or erected under the provisions of this section shall not be used in contravention of the exclusive privilege conferred upon the Postmaster-General by the Telegraph Act 1869 and shall be so constructed maintained and used as to prevent interference with any telegraphic line (as defined by the Telegraph Act 1878) belonging to or used by the Postmaster-General or with telegraphic communication by means of any such line : Application of Waterworks Clauses Act 1847 to telephones.

Provided also that nothing in this section shall authorise the breaking up of any street or road repairable by any railway company without the consent of such company which consent shall not be unreasonably withheld.

**33.** The Company may on all or any of the lands for the time being held by them execute for the purposes of or in connection with the undertaking any of the works mentioned in section 12 of the Waterworks Clauses Act As to exercise of powers of section 12 of Water-



A.D. 1931. 1847 (other than wells and works for the taking and intercepting of water) Provided that the Company shall not under the powers of this section create or permit the creation or continuance of any nuisance on any such lands.

works  
Clauses Act  
1847.

Meters &c.  
to measure  
water or  
detect  
waste.

**34.**—(1) Subject to the provisions of the Waterworks Clauses Act 1847 the Company may for the purpose of measuring the quantity of water supplied or preventing and detecting waste affix and maintain meters and other apparatus on the service pipes and mains of the Company and stopcocks in the pipes supplying houses with water and may insert in the roads or footways the necessary covers or boxes for giving access and protection thereto and may for that purpose temporarily stop up break up and interfere with public and private streets roads lanes footways courts passages tramways sewers pipes wires and apparatus and the provisions of the said Act with respect to the opening and breaking up of sewers drains and tunnels shall *mutatis mutandis* extend and apply to the breaking up and interference with gas pipes under the provisions of this section.

(2) The Company shall not under the powers of this section interfere with any telegraphic line (as defined by the Telegraph Act 1878) belonging to or used by the Postmaster-General except in accordance with and subject to the provisions of the said Act.

(3) The Company shall not under the powers of this section enter upon break up or interfere with the railway or works or any electric lines wires or apparatus belonging to a railway company or any street belonging to such company without the consent of that company which consent shall not be unreasonably withheld nor shall the Company unreasonably obstruct or interfere with the access to or exit from any station or depot of that company.

(4) The Company shall not under the powers of this section interfere with the works of any undertakers within the meaning of the Electricity (Supply) Acts 1882 to 1928 to which the provisions of section 15 of the Electric Lighting Act 1882 apply except in accordance with and subject to the provisions of that section.



**35.**—(1) For the purpose of protecting any of their waters and waterworks against pollution nuisance encroachment or injury the Company may by agreement purchase take on lease and acquire any lands in or over which any waters which the Company are for the time being authorised to collect impound take use divert or appropriate arise or flow and may hold such lands so long as they shall deem it necessary or expedient for those purposes Provided that the Company shall not create or permit the creation or continuance of any nuisance on any lands acquired under this section nor erect any buildings thereon except offices and dwellings for persons in their employment and such buildings and works as may be incident to or connected with the undertaking.

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Powers for  
protection  
of waters  
and water-  
works.

(2) The Company may in and upon any lands so acquired by them construct and lay down drains sewers watercourses and other works and conveniences necessary or proper for the purpose of intercepting or taking all foul waters arising or flowing upon such lands or necessary or proper for preventing the water which the Company are empowered to take from being polluted and the Company may for the purposes aforesaid carry any such drain sewer or watercourse under across or along any street or road within any area in or through which any waters which may be taken by the Company arise or flow subject and according to the provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes.

(3) The Company shall not exercise the powers conferred by this section on any lands or property belonging to a railway company without the consent of the company to which such lands or property belongs which consent shall not be unreasonably withheld.

**36.** The Company may make and carry into effect agreements with the owners lessees or occupiers of any lands within the drainage area of their waterworks with reference to the execution by the Company or such owners lessees or occupiers of such works as may be necessary for the purpose of draining such lands or any of them or for more effectually collecting conveying and preserving the purity of the waters authorised to be diverted collected and appropriated by the Company

Power to  
agree as to  
drainage of  
lands &c.



.A.D. 1931. flowing to upon or from such lands directly or deriva-  
— tively into such works.

Retention  
and disposal  
of lands.

**37.** Notwithstanding anything in this or any other Act or Acts to the contrary the Company may retain hold and use for such time and for such purpose as they may think fit or may sell lease exchange or otherwise dispose of in such manner and for such consideration and purpose and on such terms and conditions as they may think fit and either in consideration of the execution of works or of the payment of a gross sum or of an annual rent or of any payment in any other form any lands or any interest in any lands acquired or authorised to be held by them under the Felixstowe and District Water Acts 1895 to 1931 and may sell exchange or dispose of any rents reserved on the sale lease exchange or disposition of such lands or interests therein and may make do and execute any deed act or thing proper for effectuating any such sale lease exchange or other disposition and on any exchange may give or take any money for equality of exchange.

#### CHANGE OF NAME.

Change of  
name of  
Company.

**38.** From and after the passing of this Act the name of the Company shall be the Felixstowe and District Water Company and by that name the Company shall have a common seal.

#### FINANCIAL PROVISIONS.

Additional  
capital.

**39.** The Company may from time to time raise additional capital to such amount as shall be sufficient to produce after taking into account the premiums or discounts (if any) which may be obtained or allowed respectively on the issue or re-issue thereof an amount not exceeding in the whole thirty thousand pounds by the creation and issue of new ordinary shares or stock or new preference shares or stock or wholly or partially by any one or more of those modes respectively.

Limit of  
profit on  
additional  
capital.

**40.** The Company shall not in any one year pay out of their profits any larger dividend on any additional capital raised under the powers of this Act than seven pounds in respect of every one hundred pounds of such capital as shall be issued as ordinary capital and six



pounds in respect of every one hundred pounds of such capital as shall be issued as preference capital unless a larger dividend be at any time necessary to make up the deficiency of any previous dividend in respect of such capital as shall be issued as ordinary capital which shall have fallen short of the said sum of seven pounds per centum per annum. A.D. 1931.

41. Except as by this Act otherwise provided the capital in new shares or stock created by the Company under this Act and the new shares or stock therein and the holders thereof respectively shall be subject and entitled to the same powers provisions liabilities rights privileges and incidents whatsoever in all respects as if that capital were part of the now existing capital of the Company of the same class or description and the new shares or stock were shares or stock in that capital. New shares or stock to be subject to same incidents as other shares or stock.

42. The capital in new shares or stock so created shall form part of the capital of the Company. New shares or stock to form part of capital of Company.

43. Except as otherwise expressly provided by the resolution creating the same no person shall be entitled to vote in respect of any new shares or stock to which a preferential dividend shall be assigned. Restriction as to votes in respect of preference shares or stock.

44. Subject to the provisions of any Act already passed by which the Company are authorised to raise capital by new shares or stock and to the provisions of this Act the Company may if they think fit raise by the creation and issue of new shares or stock of one and the same class all or any part of the aggregate capital which they are by such other Act and this Act respectively authorised to raise by the creation and issue of new shares or stock. New and existing shares or stock may be of same class.

45. In case in any year or in any half-year (if the Company declare a dividend half-yearly) the funds of the Company applicable to dividend shall be insufficient to pay the full amount of dividend at the prescribed maximum rate on each class of ordinary shares or stock in the capital of the Company a proportionate reduction shall be made in the dividend of each class. Dividends on different classes of ordinary shares or stock to be paid proportionately.

46.—(1) Save as otherwise expressly provided by this Act all ordinary or preference shares or stock created by the Company after the passing of this Act shall be issued in accordance with the provisions of this section. New shares or stock to be sold by auction or tender.



A.D. 1931.  
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(2) All shares or stock so to be issued shall be offered for sale by public auction or tender in such manner at such times and subject to such conditions of sale as the directors shall from time to time determine Provided as follows :—

- (a) Notice of the intended sale shall be given in writing to the clerk of each local authority having jurisdiction within the limits of supply and to the secretary of the London Stock Exchange at least seven days before the day of auction or the last day for the reception of tenders as the case may be and shall also be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the limits of supply;
- (b) A reserve price shall be fixed and notice thereof shall be sent by the Company in a sealed letter to be received by the Minister of Health not less than twenty-four hours before but not to be opened until after the day of auction or last day for the receipt of tenders as the case may be;
- (c) In the case of a sale by auction no lot offered for sale shall comprise shares or stock of greater nominal value than one hundred pounds and a bid shall not be recognised unless it is in advance of the last preceding bid;
- (d) In the case of a sale by tender no preference shall be given to one of two or more persons tendering the same sum except that the offer by tender of any holder of ordinary or preference shares or stock of the Company may be accepted in preference to the offer of the same sum by any person not such a holder as aforesaid and preference may in like manner be given to the offer of any employee of the Company or consumer of water supplied by the Company;
- (e) It shall be one of the conditions of sale that the total sum payable by the purchaser shall be paid to the Company within three months after the date of the auction or of the acceptance of the tender as the case may be.



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(3) Any shares or stock which have been so offered for sale and are not sold may be offered at the reserve price to the holders of ordinary and preference shares or stock of the Company in accordance with the provisions of sections 18 19 and 20 of the Companies Clauses Act 1863 and to the employees of the Company and to the consumers of water supplied by the Company in such proportions as the directors may think fit or one or more of those classes of persons only :

Provided that in the case of an offer to holders of shares or stock if the aggregate amount of shares or stock applied for shall exceed the aggregate amount so offered as aforesaid the same shall be allotted to and distributed amongst the applicants as nearly as may be in proportion to the amounts applied for by them respectively.

(4) Any shares or stock which have been offered for sale in accordance with subsection (2) or with subsections (2) and (3) of this section and are not sold may be disposed of for the purpose of realising the best price obtainable at such price and in such manner as the directors may determine.

(5) As soon as possible after the conclusion of the sale or sales the Company shall send a report thereof to the Minister of Health stating the total amount of each class of shares or stock sold the total amount obtained as premium (if any) and the highest and lowest price obtained for each class of shares or stock.

47. Notwithstanding anything in any Act relating to the Company the directors may with the approval of a resolution of a general meeting reserve a proportion not exceeding one-fourth of each issue of ordinary or preference shares or stock for exclusive offer in the first instance to consumers of water supplied by the Company and to the employees of the Company at such price and upon such terms and conditions as to payment therefor and the payment of dividends thereon until the same become fully paid as the directors may prescribe :

Special provision for benefit of small investors.

Provided that every allotment of ordinary or preference shares or stock under this section shall be at a price not less than the reserve price at which the like class of ordinary or preference shares or stock of the same issue



A.D. 1931. shall be offered under the provisions of subsection (2) of the section of this Act whereof the marginal note is  
— “ New shares or stock to be sold by auction or tender.”

Power to  
issue capital  
to employ-  
ees and  
consumers.

**48.** Notwithstanding anything in any Act relating to the Company the directors may with the consent of the Minister of Health and subject to such conditions as that Minister may think fit to impose offer for subscription to consumers of water supplied by the Company and to the employees of the Company any ordinary or preference shares or stock which they are or may hereafter be authorised to create and issue without first offering the same for sale by public auction or tender.

Provisions  
as to pay-  
ment of  
commission  
on sale of  
capital.

**49.** The Company when ordinary or preference shares or stock is to be offered for sale may with the approval of the Minister of Health and subject to such conditions as the Minister may think fit to impose pay a commission not exceeding five per centum to any person in consideration of his subscribing or agreeing to subscribe whether absolutely or conditionally for any such shares or stock or procuring or agreeing to procure subscriptions whether absolute or conditional for such shares or stock :

Provided that—

(a) the payment of the commission and the amount or rate per centum of the commission paid or agreed to be paid shall be disclosed in every prospectus advertisement or other document of the Company relating to the offer for sale of the shares or stock; and

(b) nothing in this section contained shall affect any power of the Company to pay brokerage.

Power to  
borrow.

**50.**—(1) The Company may subject to the provisions of this Act but without the certificate of a justice at any time after the passing of this Act borrow on mortgage of the undertaking in respect of their capital issued at the passing of this Act any sum or sums not exceeding in the whole (when added to any money borrowed on mortgage or bond or raised by the creation and issue of debenture stock before the passing of this Act and outstanding at the date or respective dates on which the Company exercise the powers of this subsection) thirty seven thousand one hundred and forty-five pounds.



A.D. 1931.

(2) The Company may also subject to the provisions of this Act borrow on mortgage of the undertaking in respect of any capital issued by them after the passing of this Act any sum or sums not exceeding in the whole one-half of the amount which at the time of borrowing has been raised by the issue of such capital But no sum shall be borrowed in respect of any such capital other than capital allotted under the provisions of the section of this Act whereof the marginal note is "Special provision for benefit of small investors" until the Company have proved to a justice before he gives his certificate under section 40 of the Companies' Clauses Consolidation Act 1845 that the whole of the amounts payable in respect of such capital at the time issued has been fully paid up.

**51.** The Company may create and issue debenture stock subject to the provisions of Part III of the Companies Clauses Act 1863 as incorporated with this Act and of section 39 (Debenture stock) of the Act of 1895.

Power to  
create de-  
benture  
stock.

**52.** All money to be raised by the Company on mortgage or debenture stock under the provisions of this Act shall have priority against the Company and the property from time to time of the Company over all other claims on account of any debts incurred or engagements entered into by them after the passing of this Act Provided always that this priority shall not affect any claim against the Company or their property in respect of any rentcharge granted or to be granted by them in pursuance of the Lands Clauses Acts or in respect of any rent or sum reserved by or payable under any lease granted or made to the Company which is entitled to rank in priority to or *pari passu* with the interest on their mortgages or debenture stock nor shall anything in this section contained affect any claim for land taken used or occupied by the Company for the purposes of the undertaking and works of the Company or injuriously affected by the construction thereof or by the exercise of any powers conferred on the Company.

Priority of  
money  
raised on  
mortgage or  
debenture  
stock over  
other  
claims.

**53.** The principal moneys secured by all mortgages granted by the Company in pursuance of the powers of any Act before the passing of this Act and subsisting at the passing hereof shall during the continuance of such mortgages have priority over the principal moneys

Priority of  
principal  
moneys  
secured by  
existing  
mortgages.



A.D. 1931. secured by any mortgages granted after the passing of this Act.

Appoint-  
ment of  
receiver.

54. The mortgagees of the undertaking may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver and in order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than one-tenth of the amount for the time being borrowed by the Company.

Redeemable  
preference  
shares or  
stock and  
debenture  
stock.

55.—(1) The directors may from time to time by virtue of this Act and without further or other sanction issue so as to be redeemable at such times and in such manner and on and subject to such terms and conditions as the directors before the issue thereof determine any preference shares or stock or debenture stock (all of which are in this section included in the expression "stock") created by the Company under the powers of the Felixstowe and District Water Acts 1895 to 1931.

(2) The Company may for the purpose of providing money for paying off redeemable stock create and issue (subject as regards preference shares or stock to the provisions of the section of this Act of which the marginal note is "New shares or stock to be sold by auction or tender") or for the purpose of providing substituted stock in exchange for redeemable stock create and issue (free from the said provisions) new stock (either redeemable or irredeemable) or re-issue stock originally created and issued as aforesaid :

Provided that the creation and issue for those purposes of any particular class of stock does not make the total nominal amount of such stock exceed the amount of that class of stock which the Company are for the time being authorised to create except during the necessary interval between the creation and issue of the new stock and the redemption of the old stock.

(3) The Company shall not redeem out of revenue any redeemable stock except to the extent of any discount allowed on the issue or any premium payable on the redemption thereof.

(4) In this section the expression "redeemable stock" means any stock issued under the powers of



this section or the Statutory Companies (Redeemable Stock) Act 1915 or the Consent of 1921 so as to be redeemable. A.D. 1931.  
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**56.** If any money is payable to a shareholder stockholder mortgagee or debenture stockholder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Company. Receipt in case of persons not sui juris.

**57.** All moneys raised under this Act including premiums shall be applied only to purposes to which capital is properly applicable and any sum of money which may arise by way of premium from the issue of shares or stock under the provisions of this Act (after deducting therefrom the expenses of and incident to such issue) shall not be considered as part of the capital of the Company entitled to dividend. Provided that all such sums shall for the purpose of determining the powers of the Company to raise money by borrowing or the amount which the Company may carry to any reserve or other fund but for no other purpose be reckoned as part of the paid up capital. Application of moneys.

**58.** The Company may apply to the purposes of this Act to which capital is properly applicable any moneys which they are already authorised to raise and which may not be required by them for the purposes for which the same were authorised to be raised. Application of existing capital.

**59.—**(1) The aggregate amount which may be carried by the Company in any year to any reserved fund formed in pursuance of section 76 of the Waterworks Clauses Act 1847 and to any contingency fund formed under section 122 of the Companies Clauses Consolidation Act 1845 shall together not exceed a sum equal to one per centum of the capital for the time being expended by the Company for the purposes of the undertaking provided that the Company shall be entitled to transfer to such reserved fund a sum or sums not exceeding two thousand pounds from the amount standing to the credit of profit and loss (net revenue) account at thirty-first day of December one thousand nine hundred and thirty and that such sum or sums shall not be reckoned in calculating the aggregate amount which may be carried by the Company as aforesaid. As to reserved and contingency funds.



A.D. 1931.

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(2) The aggregate amount standing to the credit of any such reserved fund and contingency fund of the Company as aforesaid shall together not at any time exceed a sum equal to ten per centum of the capital for the time being expended by the Company for the purposes of the undertaking.

Limitation  
on carry  
forward.

**60.** It shall not be lawful for the Company to carry forward at the end of any year to the credit of the profit and loss (net revenue) account any sum exceeding the total of the following amounts (that is to say) :—

- (a) the amount required by the Company for paying any dividend or interest which the Company are entitled or required to pay but have not paid in respect of that year;
- (b) an amount equal to the total sum which the Company would be lawfully entitled to distribute as dividends on their preference and ordinary capital in respect of the next following year; and
- (c) an amount equal to the total sum which the Company will be required to pay during the next following year as interest on any mortgages debentures or debenture stock.

#### SUPPLY OF WATER &C.

Amendment  
of section 35  
of Water-  
works  
Clauses Act  
1847.

**61.** The provisions of section 35 of the Waterworks Clauses Act 1847 shall in their application to the Company be read and construed as if one-tenth part of the expenses of providing and laying down pipes mentioned in that section were one-eighth part of such expense.

Guarantees  
by district  
councils.

**62.—(1)** Any urban or rural district council whose district is in whole or in part within the limits of supply may give and enter into any guarantee or contract for securing payment to the Company of such periodical or other sum or sums at such time or times in such manner and subject to such stipulations as may be agreed by and between such council and the Company for the purpose of or with respect to the providing or laying down by the Company of any main pipe or works for the supply of water within any part of such district.

(2) The giving of such guarantee and the performance of any contract in relation thereto shall be deemed



to be a purpose for which under the provisions of any general Act relating to the powers of such council they may incur expenditure and any such council may raise in like manner as money may be raised under the provisions of any such general Act any money which may become payable to the Company under this section. A.D. 1931.  
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(3) Subject to the provisions of the Local Government Act 1929 where such money is raised by a rural district council by means of a rate such rate shall be or shall be deemed to be a special rate.

(4) Nothing in this section shall be deemed to authorise any such urban or rural district council to use any water supplied by the Company under any such guarantee or contract as aforesaid in any part of the district of such council which is beyond the limits of supply and within the limits for the supply of water of any other authority supplying water under parliamentary authority without the consent of such other authority.

**63.** Notwithstanding anything in section 70 of the Waterworks Clauses Act 1847 contained the Company shall be entitled to demand payment of water rates in advance by equal half-yearly payments on the first day of January and the first day of July in each year Provided that— Water rates to be paid half-yearly.

(a) no person shall be compellable to pay water rates so demanded for any longer period in advance than three months; and

(b) any person who shall occupy any premises during part only of any half-year in respect of which the rates are so demanded shall be liable only for a part of the rates proportionate to that part of the half-year and if any such person shall have paid to the Company a greater part of such rate the balance shall be refunded to him by the Company.

**64.**—(1) Where water supplied for domestic purposes is used for horses or washing carriages or motor cars or for other purposes in stables garages or premises where horses carriages or motor cars are kept the Company may if a hose-pipe or other similar apparatus is used charge such additional sum not exceeding twenty-five shillings per annum as they may prescribe and Charges for supply by hose-pipe.



A.D. 1931. (where more motor cars than one are kept) a further sum not exceeding ten shillings per annum for each motor car beyond the first.

(2) Any sums charged under this section shall be recoverable in the same manner as water rates.

(3) Where water supplied by the Company to a person who takes a supply both for domestic purposes and by meter for trade or other purposes is used by him by means of a hose-pipe or other similar apparatus for horses or washing carriages or motor cars or for other purposes in stables garages or premises where horses carriages or motor cars are kept the Company may if they think fit require that all water so used shall be taken by meter and paid for at prices not exceeding those set forth in section 58 (Rate for supply by meter in certain cases) of the Act of 1895 as for the time being modified by any order made under the Water Undertakings (Modification of Charges) Act 1921.

Charges for  
supplies for  
refrigerating  
apparatus  
&c.

**65.** Where a person who takes a supply of water for domestic purposes from the Company desires to use for or in connection with a refrigerating apparatus or for or in connection with any apparatus (other than apparatus used for softening water for domestic supplies which does not require water for cleaning cooling regenerating or for motive power or similar purposes) depending while in use upon a supply of continuously running water any of the water so supplied the Company shall be entitled to require that all water so used shall—

(a) be taken by meter and paid for at prices not exceeding those set forth in section 58 (Rate for supply by meter in certain cases) of the Act of 1895 as for the time being modified by any order made under the Water Undertakings (Modification of Charges) Act 1921 and in that event the minimum quarterly charge for the water shall be ten shillings; or

(b) be paid for at such rates as may be agreed between the consumer and the Company.

Rates payable by  
owners of  
small  
houses.

**66.**—(1) Where the net annual value of a house supplied with water does not exceed fifteen pounds or the house is let to monthly or weekly tenants or tenants holding for any other period less than a quarter of a year



the owner instead of the occupier shall if the Company so determine pay the rate for the supply but the rate may be recovered by the Company from the occupier and may if so recovered and if the occupier be not himself liable therefor under any lease or agreement be deducted by him from the rent from time to time due from him to the owner. Provided that no greater sum shall be recovered at any one time from any such occupier than the amount of rent owing by him or which shall have accrued due from him subsequent to the service upon him of a notice to pay the rate. A.D. 1931.  
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(2) The provisions of section 73 (Tenants under existing leases to repay the owner) of the Waterworks Clauses Act 1847 shall *mutatis mutandis* extend and apply to any payments made under the provisions of this section by the owner of any house and as if such first-mentioned provisions applied in the case of any lease or agreement whether made before or after the passing of this Act.

**67.** It is hereby declared that the expression "large public institution" where used in section 57 (Certain provisions as to supply) of the Act of 1895 shall include any public institution which is habitually occupied by at least twenty persons. Interpretation of section 57 of Act of 1895.

**68.—**(1) The Company shall not be bound to supply with water otherwise than by meter— Supply to certain premises.

(a) any school club assembly hall restaurant private hospital nursing home asylum or sanatorium or other private institution; or

(b) any boarding house capable of accommodating fifteen or more persons including the persons usually resident therein.

(2) Where a supply of water to a farmhouse is used for farming purposes the Company may require that the supply for farming purposes shall be taken by meter but nothing in this section shall authorise the Company to refuse a supply of water for domestic purposes to a farmhouse at the rates for the time being authorised.

(3) Subject to the provisions of this Act the price to be charged for a supply of water by meter to any



A.D. 1931. of the premises mentioned in this section shall not  
— exceed the prices set forth in section 58 (Rate for  
supply by meter in certain cases) of the Act of 1895  
as for the time being modified by any order made  
under the Water Undertakings (Modification of Charges)  
Act 1921.

Minimum  
charge for  
certain  
supplies by  
meter.

**69.** Notwithstanding anything in any Act or Order relating to the Company the minimum quarterly charge (exclusive of meter rent) for a supply of water by meter to any of the premises mentioned in Section 57 (Certain provisions as to supply) of the Act of 1895 or in the section of this Act whereof the marginal note is "Supply to certain premises" shall be one-fourth of the annual amount which would be payable according to the scale for the time being in force for a domestic supply furnished to a dwelling-house of the same net annual value.

Special  
terms for  
supplies to  
caravans &c.

**70.—(1)** Notwithstanding anything in this or any other Act relating to the Company a person shall not be entitled to demand or continue to receive from the Company a supply of water to any caravan shack hut tent or other like structure unless he has agreed with the Company to take a supply of water by meter and to pay to the Company such minimum annual sum as will give them a reasonable return on the capital expenditure incurred by them in providing the supply or supplies required by him and will cover other standing charges incurred by them in order to meet the possible maximum demand for his caravan shack hut tent or structure and will yield a reasonable return on the cost of the water consumed or used by him and unless he has secured to the reasonable satisfaction of the Company by way of deposit or otherwise payment of such a sum as may be reasonable having regard to the possible maximum demand of such person for his caravan shack hut tent or structure.

(2) The sum to be so paid and the security to be so given shall be determined in default of agreement by a court of summary jurisdiction who may also order by whom the costs of the proceedings before them shall be paid and the decision of the justices shall be final and binding on all parties.



**71.** In the case of all new buildings erected after the passing of this Act within the limits of supply and connected with the mains of the Company the Company may in cases where the communication pipes are laid by the owner or by the Company at his request require the owner at the time when the pipes are laid to insert or to have inserted a stop-cock in the communication or service pipe from the said premises in some position as near as is reasonably possible to the main of the Company from which the supply is given to the said premises and if such owner make default the Company may insert a stop-cock in such communication or service pipe and recover the expense from the owner as a civil debt.

A.D. 1931.

—  
Stop-cocks  
to be fitted  
in commu-  
nication  
pipes.

**72.—**(1) The Company shall not be bound to supply more than one house by means of the same communication pipe and they may if they think fit require that a separate pipe be laid from the main pipe into each house supplied by them with water.

Separate  
communica-  
tion pipes  
may be  
required.

(2) If the owner of any house supplied with water by the Company when so required in pursuance of the preceding subsection fails within a period of one month after the receipt of such requirement to provide a separate pipe from the main pipe into such house the Company may themselves do the work necessary in that behalf and may recover from such owner the cost incurred by them in so doing summarily as a civil debt.

**73.** Where several houses or parts of houses in the occupation of several persons are supplied with water by one common pipe belonging to the several owners or occupiers of such houses or parts of houses the said several owners or occupiers shall be liable to contribute the amount of any expenses from time to time incurred by the Company in the maintenance and repair of such pipe and their respective proportions of contributions shall be settled by the engineer of the Company or other qualified officer for the time being authorised in that behalf by the Company.

Maintenance  
of common  
pipe.

**74.** Notwithstanding anything in any Act relating to the Company the Company shall have the exclusive right of executing any works on any of the water mains of the Company for connecting any communication or

Company to  
connect  
communica-  
tion pipes  
with mains.



A.D. 1931. service pipe therewith and the Company shall on the request of any owner or occupier of any premises who is entitled to be supplied with water by the Company execute on any such main (subject to the provisions so far as applicable of the Waterworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes) any work and supply all fittings and materials which shall be necessary to connect the communication or service pipe of such owner or occupier therewith and any expenses incurred by the Company in so doing shall be repaid by the owner or occupier so requesting and shall be recoverable as a civil debt.

Notice of  
discontinu-  
ance.

**75.** A notice to the Company from a consumer for the discontinuance of a supply of water shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Company or be given personally at the office of the Company.

Power to  
Company to  
repair com-  
munication  
pipes.

**76.** If in the opinion of the Company any waste of water or injury or risk of injury to person or property is caused or likely to be caused by reason of any injury to or defect in any communication pipe which the Company are not under obligation to maintain it shall be lawful for the Company to execute such repairs to the communication pipe as they may think necessary or expedient in the circumstances of the case without being requested so to do and if any injury to or defect in the communication pipe shall have been found the expenses incurred by the Company for the purpose of ascertaining the cause of injury or defect and executing the repairs (including the expenses of breaking up filling in reinstating and making good any road pavement or soil for those purposes) shall be recoverable by the Company from the owner of the premises supplied or in cases where the communication pipe is repairable by the occupier of such premises from the occupier in like manner as the water rates in respect of the premises are recoverable. Provided that except in case of emergency the Company shall not under the powers of this section enter into any house or private premises unless they shall have given to the owner and occupier of such house or premises not less than twenty-four hours' previous notice of their intention so to enter.



**77.**—(1) Where water is supplied by measure the register of the meter or other instrument for measuring water shall be *prima facie* evidence of the quantity of water consumed and in respect of which any water rate rent or charge is charged and sought to be recovered by the Company. Provided always that if the Company and the person to whom the water is supplied differ as to the quantity consumed such difference shall be determined upon the application of either party by a court of summary jurisdiction who may also order by which of the parties the costs of the proceedings before them shall be paid and the decision of such court shall be final and binding on all parties.

A.D. 1931.

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Register of  
meters to be  
*prima facie*  
evidence.

(2) In the event of any meter used by a consumer of water being proved to register erroneously such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter. The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Company shall be paid by or to the Company to or by the consumer as the case may be and in the case of a surcharge shall be recoverable in the like manner as rates for water are recoverable by the Company.

**78.** Every person who shall wilfully (without the consent of the Company) or negligently close or shut off any valve cock or other work or apparatus belonging to the Company whereby the supply of water shall be interfered with shall (without prejudice to any other right or remedy of the Company) be liable on conviction to a penalty not exceeding five pounds and the Company may in addition thereto recover the amount of any damage by them sustained. Provided that this section shall not apply to a consumer closing a valve fixed on his communication pipe.

Penalty for  
closing  
valves and  
apparatus.

**79.** Any person being the owner or occupier of any house or building or part of a house or building or premises to or in respect of which he is not for the time being entitled to a supply or the continuance of a supply of water by the Company who shall without the authority of the Company turn on any valve cock or other work or apparatus attached to any service main or pipe connected with any main of the Company and

Penalty for  
opening  
valves &c.



A.D. 1931. — provided or available for the purposes of affording such supply shall be deemed to commit an offence under section 60 (Penalty for destroying valves drawing off water &c.) of the Waterworks Clauses Act 1847 and the said section shall extend and apply accordingly.

Extension of power to inspect premises.

**80.** In addition to the powers conferred by section 57 (Power to surveyor employed by undertakers to enter houses to inspect &c.) of the Waterworks Clauses Act 1847 any duly authorised officer of the Company may at all reasonable times between the hour of four o'clock in the afternoon and one hour after sunset enter into any house or premises supplied with water by the Company in order to examine if there be any waste or misuse of such water and if any person hinder any such officer from entering or making such examination as aforesaid he shall for every such offence be liable to a penalty not exceeding five pounds.

Fittings let for hire not to be subject to distress &c.

**81.**—(1) Any meters or fittings let for hire by the Company shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under any process of any court or any proceedings in bankruptcy against the persons in whose possession the same may be. Provided that such meters or fittings have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Company as the actual owners thereof.

(2) Subject to the proviso to subsection (1) of this section all meters and fittings let for hire as aforesaid shall notwithstanding that they be fixed or fastened to any part of the premises in which they may be situate or to the soil under any such premises at all times continue to be the property of and removable by the Company. Provided that nothing in this subsection shall affect the valuation for rating of any rateable hereditament.

Opening of ground by person liable to maintain pipes &c.

**82.**—(1) For the purpose of complying with any obligation under the Waterworks Clauses Acts 1847 and 1863 to maintain any pipe or apparatus the person liable to maintain the same shall have the like power to open the ground as is conferred upon him by and subject to the conditions of sections 48 to 52 of the



Waterworks Clauses Act 1847 in relation to the laying of communication pipes. A.D. 1931.

(2) The Company may by agreement with any owner or occupier entitled or required to lay maintain repair or remove any communication pipe and for that purpose to open or break up any street execute such works on behalf of such owner or occupier and any expenses incurred by the Company shall be repaid by the owner or occupier with whom the agreement is made.

**83.** The Company may on the application of the owner or occupier of any premises within the limits of supply abutting on or being erected in any street laid out but not dedicated to public use supply those premises with water and for that purpose the Waterworks Clauses Act 1847 shall apply as if section 29 of that Act were excepted from incorporation in this Act: Power to lay pipes in private streets.

Provided that the Company shall not exercise their powers under this section in respect of any existing street belonging to or maintained by any railway company except with the consent of the railway company but such consent shall not be unreasonably withheld nor shall the Company in carrying out any works authorised by this section unreasonably obstruct or interfere with the access to any such street.

**84.** The Company may enter into and carry into effect agreements with any local authority company or person supplying water under parliamentary authority for the purchase of water in bulk by the Company for such price and on such terms and conditions and for such period as may be agreed upon and any water so purchased may be used by the Company for the purposes of the undertaking. Purchase of water in bulk.

**85.**—(1) Where the limits of supply are bounded by or abut upon any street or part of a street wholly outside those limits the Company may for the purpose of supplying water to the owner or occupier of any premises abutting upon that street or part of a street and being within the limits of supply exercise with respect to such street or part of a street outside those limits the like powers of breaking up the same for the purposes of laying maintaining inspecting repairing and renewing pipes as are exerciseable by them with respect to streets within the limits of supply subject nevertheless As to streets forming boundary of limits of supply.



A.D. 1931. — to the observance of the conditions imposed on an exercise of those powers.

(2) The owner and occupier of any premises to which subsection (1) of this section applies may for the purpose of laying any communication pipe or of complying with any obligation to maintain any pipe or apparatus which he is liable to maintain exercise the like power of opening the ground between any main or pipe of the Company and his premises and of opening or breaking up so much of the pavement of the street as shall be between such main or pipe and his premises and any sewer or drain therein as if such street or part of a street were wholly within the limits of supply.

(3) Nothing in this section shall entitle or require the Company to supply water to the owner or occupier of any premises abutting upon any such street and being outside the limits of supply.

#### MISCELLANEOUS.

Company  
not bound  
to regard  
trusts.

**86.** The Company shall not be bound to see to the execution of any trust whether express implied or constructive to which their capital or mortgages or debenture stock may be subject and the provisions of section 20 of the Companies Clauses Consolidation Act 1845 shall *mutatis mutandis* extend and apply to any capital or mortgage or debenture stock of the Company as if such capital or mortgage or debenture stock were shares to which that section applied :

Provided that in that section for the words " receipt of one of the parties named in " the words " receipt of the party whose name stands first on " shall be substituted.

Meetings of  
Company.

**87.** Notwithstanding anything in the Companies Clauses Consolidation Act 1845 the Company may by a resolution of a general meeting at any time determine that the future ordinary meetings of the Company shall be held once only in each year in such month as the directors may from time to time determine and the Company may from time to time in like manner alter or rescind any such resolution.

Notices of  
meetings.

**88.** Notwithstanding anything in the Companies Clauses Consolidation Act 1845 notice of all meetings



of the Company whether ordinary or extraordinary may (if the directors so determine) be given by letter sent by ordinary letter post to each shareholder or stockholder instead of by public advertisement. Provided that the letters giving the notice shall be directed according to the registered address or other known address of each shareholder or stockholder prepaid and posted not later than seven clear days before the date of the meeting. In proving that any such notice has been given it shall be sufficient to prove that the letter containing the notice was properly addressed and put into the Post Office as a prepaid letter not later than the time hereby prescribed. A.D. 1931.  
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**89.**—(1) Every question submitted to a general meeting of the Company shall be decided in the first instance by a show of hands and in the case of an equality of votes the chairman shall on a show of hands have a casting vote in addition to the vote to which he may be entitled as a shareholder or stockholder. Votes at meetings.

(2) On a show of hands every shareholder or stockholder present in person and entitled to vote shall have one vote.

(3) Where a corporation being a shareholder or stockholder and entitled to vote is present by a proxy who is not a shareholder or stockholder in the Company such proxy shall be entitled to vote for such corporation on a show of hands.

**90.** If and so long as the ordinary meetings of the Company shall be held once only in each year— Interim dividends and annual accounts.

(a) it shall be lawful for the directors on or after the thirtieth day of June in any year without the sanction of a general meeting to declare and pay out of the funds of the Company available for dividend an interim dividend on any class of shares or stock in the capital of the Company on account of the dividend for that year to be declared at the next following annual general meeting. Provided that no such interim dividend shall as respects any ordinary shares or stock be at a greater rate than one-half of the maximum rate of dividend on such shares or stock or as respects any preference shares or stock be at any greater rate than one-half of



A.D. 1931.  
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the preferential annual rate of dividend assigned to such shares or stock;

- (b) section 116 of the Companies Clauses Consolidation Act 1845 shall be read and have effect as if the words “preceding year” were substituted therein for the words “preceding half-year.”

Closing of  
transfer  
books.

**91.**—(1) The directors may close the register of transfers for a period not exceeding fourteen days previous to the declaration of any dividend and they may close the registers of transfers of mortgages and debenture stock for a period not exceeding fourteen days previous to each date at which the interest thereon shall be payable and in the case of any such register they may fix a day for closing the same of which seven days’ notice shall be given either by circular to each proprietor or by advertisement in a newspaper circulating in the limits of supply.

(2) Any transfer of shares or stock or mortgages or debenture stock made during the time when the register of transfers of such shares stock or security is so closed shall as between the Company and the person claiming under the same but not otherwise be considered as made subsequent to the declaration of any such dividend or the payment of any such interest as the case may be.

Indemnity  
may be  
required  
before issue  
of substi-  
tuted certi-  
ficates &c.

**92.** Notwithstanding anything in section 13 of the Companies Clauses Consolidation Act 1845 or in any other enactment the Company shall not be under any obligation to issue a new debenture or mortgage bond or a new certificate of any ordinary or preference shares or stock or debenture stock or a new warrant in respect of interest or dividend in lieu of any debenture bond certificate or warrant lost or destroyed or alleged to be lost or destroyed until they have received from the person to whom such new debenture bond certificate or warrant is to be issued such indemnity as the directors may require against any and every claim or expense which may be made against the Company or which the Company may incur in respect of such lost or destroyed debenture bond certificate or warrant or the debenture mortgage share stock dividend or interest represented thereby.



**93.**—(1) The directors may appoint one of their body to be managing director either for a fixed term or without any limitation as to time and may remove or dismiss him from office and appoint another in his place.

A.D. 1931.

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As to ap-  
pointment  
of managing  
director.

(2) A managing director shall not while holding that office be subject to retirement by rotation and shall not be taken into account in determining the rotation of retirement of directors but if he ceases to hold the office of director from any other cause he shall ipso facto immediately cease to be managing director.

(3) The remuneration of a managing director from time to time shall be fixed by the directors and may be by way of salary or commission or participation in profits or by all or any of these modes.

(4) The directors may entrust to and confer upon a managing director such of the powers exerciseable by the directors and subject to such conditions as they think fit and from time to time may revoke withdraw alter or vary all or some of such powers.

**94.** Notwithstanding anything in the Companies Clauses Consolidation Act 1845 no person shall be disqualified from being a director of the Company by reason of his holding any office or place of trust or profit under the Company or by reason of his being interested in any contract with the Company nor shall any director be required to cease from voting or acting as a director by reason of his accepting any such office or place of trust or profit or becoming interested in any such contract :

Director  
holding  
office under  
or contract-  
ing with  
Company.

Provided that in the case of his being or becoming interested in any contract with the Company whether such interest shall arise before or after his appointment as a director the nature of his interest in the contract shall be disclosed by him at the meeting of the directors at which the contract is determined or if his interest then exists or in any other case at the first meeting of the directors after the acquisition of his interest or after his appointment and that no director shall as a director vote in respect of any such contract and if he does so vote his vote shall not be counted but this prohibition shall not apply to any contract by or on behalf of the Company to give to the directors or any of them any security by way of indemnity.



A.D. 1931.

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Notice of  
candidature  
or of oppo-  
sition to re-  
election of  
director.

**95.**—(1) Except in the case of a director retiring by rotation and offering himself or being proposed for re-election or except in the case of a director being elected by the directors to fill a casual vacancy no person shall be capable of being elected a director of the Company unless notice in writing that such person intends to offer himself or will be proposed for the office of director shall have been given to the secretary of the Company or left at the principal office of the Company fourteen days at least before the day of election and the secretary of the Company shall during such fourteen days and on the day of election fix a copy of every such notice so delivered in some conspicuous place in such office.

(2) In the case of a retiring director notice of opposition to his re-election shall be given in like manner.

(3) No person shall be eligible to be elected a director at any general meeting of the Company unless he shall have been the holder of the qualifying amount of shares or stock for at least two months prior to his election.

Auditors.

**96.**—(1) It shall be lawful for the Company at any time by resolution passed at a general meeting to decide that the audit of the Company's accounts shall be made by a single auditor or by a firm of accountants and notwithstanding anything in the Companies Clauses Consolidation Act 1845 it shall not be necessary for such auditor or the members of such firm to hold any share or stock in the Company.

(2) No person not being a retiring auditor of the Company shall be eligible to be elected at any general meeting as auditor of the Company unless notice be given to the secretary or left at the principal office of the Company seven days at least before the date of the meeting that such person will be proposed for election as an auditor of the Company. The secretary shall on receipt of any such notice send a copy thereof to the retiring auditor and during such seven days and the day of election keep a copy of the notice fixed in some conspicuous place in the said office.

(3) If any auditor of the Company dies or resigns the directors may appoint another auditor in his place



and any auditor so appointed shall hold office until the next ordinary meeting. A.D. 1931.

**97.** In addition to the powers which the directors may exercise under the Companies Clauses Acts 1845 to 1889 they may from time to time determine the remuneration of the secretary of the Company. Directors may determine remuneration of secretary.

**98.** Notwithstanding anything in the Companies Clauses Consolidation Act 1845 it shall not be obligatory upon the Company— Register of shareholders and shareholders' address book.

(a) to keep separately a register of shareholders and a shareholders' address book but in lieu thereof the Company may if they think fit keep one register only containing such particulars as are required by the said Act to be entered in the register of shareholders and the shareholders' address book respectively; or

(b) to authenticate by the affixing of their common seal or otherwise the register of shareholders or any register which the Company may keep in lieu thereof under the powers of this section.

**99.** Notwithstanding anything in the Companies Clauses Consolidation Act 1845 the attorney of any shareholder or stockholder duly authorised in writing may appoint a proxy (such proxy being a shareholder or stockholder) to vote for and on behalf of the shareholder or stockholder and for that purpose may execute on behalf of the shareholder or stockholder the necessary form of proxy. Provided that the instrument appointing the attorney or in the case of an instrument deposited in the central office of the Supreme Court of Judicature an office copy thereof shall be transmitted to the secretary of the Company at the same time as the instrument appointing the proxy. As to appointment of proxies.

**100.** Notwithstanding anything in the Companies Clauses Consolidation Act 1845 where several persons are jointly entitled to and registered as holders of any shares or stock to which voting rights are attached any one of those persons may vote at any meeting either personally or by proxy in respect of the shares or stock as if he were solely entitled thereto but if more than one of the joint holders be present at any meeting personally or by proxy that one of the said persons so present whose name stands first on the register in respect Joint holders.



A.D. 1931. of the shares or stock shall alone be entitled to vote  
— in respect thereof Several executors or administrators  
of a deceased member in whose name any shares or  
stock stands shall for the purposes of this section be  
deemed joint holders thereof.

Power to  
make super-  
annuation  
and other  
allowances.

**101.**—(1) It shall be lawful for the Company to make superannuation and other allowances and to pay or contribute towards pensions or gratuities to any officer servant or employee of the Company or (where in any particular case no adequate provision is in the opinion of the Company otherwise made) to the widow or family or any dependant of any officer servant or employee of the Company.

(2) The Company may enter into and carry into effect agreements with any local authority as defined by the Local Government and other Officers' Superannuation Act 1922 to which that Act applies or with any insurance company or other association or company for securing to any such officer servant or employee widow family or dependant such gratuities pensions allowances or payments as are by this section authorised to be made.

(3) The Company may apply their funds and revenues for the purposes of this section.

Power to  
make dona-  
tions sub-  
scriptions  
&c.

**102.** The Company may subscribe or make donations to infirmaries and hospitals and convalescent homes and other similar institutions and objects or to industrial exhibitions or to the benevolent accident or sick funds of the officers servants and employees of the Company and may for any of those purposes apply the funds and revenues of the Company.

Authentica-  
tion and  
service of  
notices by  
Company.

**103.**—(1) Any notice to be served by the Company shall be sufficiently authenticated by the signature of the secretary or other officer of the Company for the time being authorised in writing by the directors or by the name of the officer being printed or stamped on the notice.

(2) Any such notice may be served either personally or by a prepaid letter sent by post and addressed to the person to be served by name at his last known or usual place of abode or of business or by delivering the same to some inmate at his last known or usual place of abode or business or to any inmate of the premises supplied



or if such premises be unoccupied and the place of abode of the person to be served is after proper inquiry unknown it shall in the case of any notice not being a notice to pay any charge be sufficient to affix such notice or a copy thereof upon some conspicuous part of such premises. A.D. 1931.

**104.** Where the payment of more than one sum by any person is due under any Act or Order for the time being relating to the Company any summons or warrant issued for the purposes of any such Act or Order in respect of that person may contain in the body thereof or in a schedule thereto all the sums payable by him. Several sums in one summons.

**105.** A judge of any court or a justice shall not be disqualified from acting in the execution of any Act or Order for the time being relating to the Company by reason of his being liable to any water rate. Liability to water rate not to disqualify justices.

**106.** Penalties imposed under any Act or Order for the time being relating to the Company for one and the same offence shall not be cumulative. Penalties not cumulative.

**107.** Save as otherwise by any such Act or Order expressly provided all offences against any Act or Order for the time being relating to the Company and all penalties forfeitures costs and expenses imposed or recoverable under any such Act or Order or any bye-law made in pursuance thereof may be prosecuted and recovered in a summary manner Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts. Recovery of penalties &c.

**108.** Proceedings for the recovery of any demand made under the authority of any Act or Order for the time being relating to the Company whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action. Recovery of demands.

**109.** Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained authorises the Company to take use or in any manner interfere with any portion of the shore or bed of the sea or of any Crown rights.



A.D. 1931. — river channel creek bay or estuary or any land hereditaments subjects or rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Crown Lands or of the Board of Trade respectively without the consent in writing of the Commissioners of Crown Lands or the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose.

For protec-  
tion of East  
Suffolk  
County  
Council.

**110.** The following provisions for the protection of the council of the administrative county of East Suffolk (in this section referred to as "the county council") shall notwithstanding anything contained in this Act and unless otherwise agreed in writing between the county council and the Company apply and have effect with respect to the exercise of the powers conferred by the section of this Act of which the marginal note is "Power to make works" so far as they affect any county road or county bridge or the roadway over the same or the approaches thereto (that is to say):—

- (1) All lines of pipes not being replacements of existing lines of pipes to be laid in or along any such road shall be laid in such position in or at the side of the road as the county council under the hand of their surveyor shall reasonably direct and where reasonably practicable shall not be laid so that any part thereof shall be within two feet six inches of the surface of the ground :
- (2) The plan required by section 31 of the Waterworks Clauses Act 1847 shall clearly indicate the position in which and the depth at which the proposed works are intended to be laid and shall be delivered to the county council or their surveyor by the Company not less than fourteen days before the Company commence to break or open up any such road for the purpose of executing the works :
- (3) If the county council at any time hereafter alter the level of or divert any such road in or along which the Company shall under the powers of the section of this Act of which the marginal note is "Power to make works" have laid down any line of pipes the Company



shall at the expense of the county council so soon as practicable after receiving notice in writing under the hand of the clerk or surveyor of the county council alter the position of any such line of pipes in the manner and to the extent prescribed by such notice or as in case of difference shall be determined by arbitration in the manner hereinafter prescribed :

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- (4) All works carried out by the Company shall so far as reasonably practicable be so executed as not to impede or interfere with the traffic on any such road :
- (5) If any difference shall arise between the Company and the county council under this section such difference shall be settled by arbitration by an engineer to be appointed failing agreement by the President of the Institution of Civil Engineers on the application of either party after notice to the other and subject as aforesaid the provisions of the Arbitration Act 1889 or of any statutory modification or re-enactment thereof for the time being in force shall apply to any such arbitration :
- (6) In this section the expression “ county road ” means any county road vested in the county council and “ county bridge ” includes any bridge which carries a county road and for the maintenance of which the county council is responsible.

**111.** The following provisions for the protection of the London and North Eastern Railway Company (in this section referred to as “ the railway company ”) shall unless otherwise agreed in writing between the Company and the railway company apply and have effect within the added limits of supply with respect to the exercise by the Company of the powers conferred on the Company by this Act and with respect to any works to be executed by the Company in exercise of such powers :—

For protection of London and North Eastern Railway Company.

- (1) In laying and also (except in cases of emergency) in effecting renewals of any mains pipes culverts or other works (in this section referred to as “ the authorised works ”) over upon across or



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under any railway or works of the railway company the Company shall execute such works in accordance with plans and sections previously submitted to and reasonably approved by the engineer of the railway company. The authorised works and any repairs thereof shall be executed with all reasonable dispatch and under the direction and superintendence (if the same be given) and to the reasonable satisfaction of the said engineer :

Provided that if the said engineer does not express his approval or disapproval of the said plans and sections within twenty-eight days after the same shall have been submitted to him he shall be deemed to have approved thereof :

- (2) The Company shall with all reasonable dispatch restore and make good to the reasonable satisfaction of the said engineer the roads over any bridges level crossings and approaches which the railway company are liable to maintain so far as the same may be disturbed or interfered with by or in connection with the authorised works :
- (3) If the railway company so elect they may themselves in the case of any level crossing execute and maintain the authorised works (other than the actual laying down and maintenance of mains and pipes) and may recover from the Company the reasonable costs of so doing :
- (4) The authorised works shall be constructed executed and maintained so as to cause as little injury or damage as may be to the railway or works of the railway company and so as to cause no interruption to the passage or conduct of traffic over such railway or at any station thereon. If any such injury damage or interruption arises from the acts or operations of the Company or by reason of the failure of the Company to maintain the authorised works or if any bursting leakage or failure of the authorised works not being due to the acts or defaults of the railway company its



servants or agents shall cause any injury or damage to any railway or works of the railway company constructed or acquired under powers in existence at the passing of this Act all such injury or damage shall forthwith be made good by the Company to the reasonable satisfaction of the engineer of the railway company and the Company shall indemnify the railway company from all claims in respect of such injury damage or interruption and shall make compensation to the railway company in respect thereof :

- (5) In the event of the Company failing to make good any such injury or damage as aforesaid or maintain the authorised works where they pass under over or in any way affect the railway or works of the railway company in substantial repair and good order to the reasonable satisfaction in all respects of the said engineer or in case of emergency the railway company may make good the same and make and do in and upon the lands of the Company or their own lands all such repairs and things as may be reasonably requisite and recover from the Company the reasonable expenses incurred by them in connection therewith :
- (6) Any additional expense which the railway company may reasonably incur in widening altering reconstructing repairing or maintaining their railway or other works under their powers as existing at the date of this Act by reason of the existence of the authorised works upon across over or under the same shall be paid by the Company :
- (7) Any difference arising between the Company and the railway company respecting any of the matters referred to in this section shall be referred to and determined by an arbitrator to be agreed upon by the railway company and the Company or failing agreement to be appointed at the request of either party after notice in writing to the other by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference.



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For protec-  
tion of  
GeorgeDenn  
Turner.

**112.** Notwithstanding anything in this Act or shown on the deposited plans and sections the following provisions for the protection of George Denn Turner or other the owner for the time being of the estate in the parish of Newbourn in the rural district of Woodbridge known as “the Newbourn Hall estate” (in this section referred to as “the owner”) shall unless otherwise agreed in writing between the owner and the Company apply and have effect (that is to say):—

- (1) In this section “the signed plan” means the plan signed in duplicate by Herbert Dunnico the Chairman of the Committee of the House of Commons to whom the Bill for this Act was referred of which one copy has been deposited in the Parliament Office in the House of Lords and the other in the Committee and Private Bill Office of the House of Commons :
- (2) The Company shall not take any greater portion of the lands of the owner than the lands delineated and coloured red on the signed plan but as respects any lands of the owner coloured blue on the signed plan in which the Company require an easement for the purposes of the line or lines of pipes (No. 3) by this Act authorised the Company may exercise the powers of the section of this Act of which the marginal note is “Power to acquire easements in lieu of lands” as if subsection (3) of that section had been omitted therefrom and the provisions of the said section (other than the said subsection (3) thereof) shall apply and have effect accordingly :
- (3) The said line or lines of pipes (No. 3) shall so far as the same may be laid in the lands of the owner coloured blue on the signed plan be made and maintained as nearly as practicable in the line A B shown on the signed plan and so that no part of the line or lines of pipes shall be less than three feet beneath the surface of the ground :
- (4) The Company shall make full compensation to the owner his lessees and tenants from any loss or damage they may sustain by reason of any



leakage from the line or lines of pipes (No. 3) or the works in connection therewith : A.D. 1931.  
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- (5) From and after the date upon which the Company take or appropriate any water from the Newbourn Stream by means of the weir (No. 1) and the line or lines of pipes (No. 1) by this Act authorised or from the springs situate in the enclosure numbered 50 on the Ordnance map sheet LXXVI. 16 edition 1927 by means of the line or lines of pipes (No. 2) by this Act authorised the Company shall free of charge deliver into the existing main of the owner at the point marked X on the signed plan and at the cottages of the owner known as " Brook Cottages " at a single point to be defined by him a proper and sufficient supply of water not exceeding in the aggregate two thousand gallons in any day of twenty-four hours for the use of the owner and his tenants :
- (6) If the Company desire to resell the whole or any portion of the lands coloured red or their rights and interests in the lands coloured blue on the signed plan the owner shall be entitled to a right of pre-emption and to repurchase the whole or any such portion of the said lands coloured red or such rights and interests in the said lands coloured blue (as the case may be) at such price as shall failing agreement between the parties be settled by arbitration Provided that if the owner shall not within six weeks after an offer of sale by the Company signify his desire to purchase he shall be deemed to have declined such offer :
- (7) (i) The Company shall provide a suitable fence (where no suitable fence already exists) along the boundary of so much of enclosures numbered 40 and 45 on the signed plan as are taken by the Company and the Company shall thereafter maintain the fence along the said boundary ;
- (ii) If the Company erect a fence which prevents access to the Newbourn Stream from the enclosures numbered 40 41 43 and 82 on the signed plan or any of them the Company shall construct in each of the said enclosures from



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which such access is prevented such troughs or watertight ponds and works and shall at all times permit to flow into such troughs or ponds such quantity of water as may be reasonably necessary for the watering of cattle in such enclosure. Such troughs ponds and works shall be of a design reasonably approved by the owner :

- (8) The Company shall execute all such works as may be reasonably necessary to prevent flooding of the lands of the owner which may result from the works by this Act authorised and such works shall be executed in accordance with plans sections and particulars to be previously submitted to and reasonably approved by the owner. Provided that if the owner shall fail to signify his disapproval of any such plans sections or particulars within one month after the same have been submitted to him he shall be deemed to have approved the same :
- (9) The Company shall not on the lands coloured red on the signed plan erect dwelling-houses for their employees or use or adapt any such lands for the purposes of a recreation ground :
- (10) All buildings to be erected by the Company on the lands coloured red on the signed plan shall be erected and maintained with due consideration to the amenities of the locality and of the Newbourn Hall estate and all such buildings (other than temporary buildings during construction) shall be erected only in accordance with such elevations and general drawings as shall be previously submitted to and reasonably approved by the owner. Provided that if the owner shall fail to signify his disapproval of any such elevations or drawings within one month after the same have been submitted to him he shall be deemed to have approved the same :
- (11) The Company shall not without the previous consent in writing of the owner (which shall not be unreasonably withheld) construct or erect any electric lines cables or apparatus



above ground over the lands coloured red on the signed plan : A.D. 1931.

- (12) The Company shall take all reasonable means for the prevention of trespass on the Newbourn Hall estate by persons in their employ or in that of their contractors :
- (13) The Company shall make full compensation to the owner his lessees and tenants for any loss or damage he or they may sustain by or in consequence of the execution of the works by this Act authorised :
- (14) The Company shall repay to the owner the reasonable costs charges and expenses reasonably incurred by him in or in connection with the approval of plans sections and particulars or elevations and drawings under this section :
- (15) Any difference which shall arise under this section between the owner and the Company shall be referred to a single arbitrator to be appointed on the application of either party (after notice in writing to the other of them) by the President of the Institution of Civil Engineers and subject thereto the provisions of the Arbitration Act 1889 shall apply to any such reference :
- (16) The provisions of this section shall be in addition to and not in derogation of any other provisions in this Act which may enure for the benefit or protection of the owner his lessees or tenants Provided that in the assessment of any compensation payable to the owner his lessees or tenants under the provisions of this Act regard shall be had to the provisions of this section.

**113.**—(1) The following provisions of the under-mentioned Acts are hereby repealed (that is to say) :—

The Act of 1895—

Section 27 (Dividends on different classes of shares or stock to be paid proportionately);

Section 28 (New shares or stock to be offered by auction or tender);



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- Section 29 (Purchase money of capital sold by auction to be paid within three months);
- Section 30 (Notice to be given as to sale &c. of shares or stock);
- Section 31 (Shares or stock not sold by auction or by tender to be offered to shareholders);
- Section 32 (Calls on shares not sold by auction);
- Section 34 (Power to borrow in respect of original capital);
- Section 35 (Power to borrow in respect of additional capital);
- Section 48 (Contracts not to disqualify for office of director);
- Section 54 (Company may lease &c. spare lands of undertaking Reservation of water rights &c. on sale);
- Section 60 (Company not bound to supply several houses by one pipe);
- Section 61 (Where several houses supplied by one pipe each to pay);
- Section 62 (Supply of water to tenements in a row);
- Section 63 (Incoming tenant not liable for arrears);
- Section 64 (Notice of discontinuance);
- Section 68 (Register of meter to be prima facie evidence);
- Section 75 (Form and service of notices by Company);
- Section 78 (Liability to water rent not to disqualify justices &c.).

## The Act of 1911—

- Section 12 (Temporary discharge of water into streams);
- Section 18 (Power to hold lands for protection of waterworks);
- Section 20 (Obligation to supply Woodbridge Rural District Council);



Section 22    (Company may sell &c. surplus lands);    A.D. 1931.

Section 27    (New shares to be sold by auction  
                                 or tender);

Section 31    (Power to borrow in respect of addi-  
                                 tional capital);

Section 32    (Priority of existing mortgages);

Section 33    (Appointment of receiver);

Section 37    (Fittings on hire not to be subject to  
                                 distress &c.);

Section 38    (Several sums in one summons).

(2) The Consent of 1921 is hereby annulled.

**114.** All costs charges and expenses preliminary to Costs of Act.  
and of and incident to the preparing applying for  
obtaining and passing of this Act or otherwise in  
relation thereto shall be paid by the Company and may  
in whole or in part be defrayed out of revenue.



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The SCHEDULES referred to in the  
foregoing Act.

## THE FIRST SCHEDULE.

## (A) CAPITAL OF THE COMPANY.

| Authority.       | Description of capital.   | Maxi-<br>mum<br>dividend. | Total paid up. |         | Re-<br>main-<br>ing<br>to be<br>raised. | Total<br>amount<br>autho-<br>rised. |
|------------------|---------------------------|---------------------------|----------------|---------|-----------------------------------------|-------------------------------------|
|                  |                           |                           | Nominal.       | Premium |                                         |                                     |
|                  |                           | %                         | £              | £       | £                                       | £                                   |
| The Act of 1895. | Original Ordinary Shares. | 7½                        | 26,590         | —       | —                                       | 26,590                              |
| Ditto            | New Ordinary Shares.      | 7                         | 12,500         | 210     | —                                       | } 23,410                            |
| Ditto            | Preference Shares         | 4½                        | 8,310          | —       | —                                       |                                     |
| Ditto            | Preference Shares         | 4½                        | 2,390          | —       | —                                       |                                     |
| The Act of 1911. | Preference Shares         | 4½                        | 8,190          | —       | —                                       | } 42,000                            |
| Ditto            | Preference Shares         | 5                         | 16,100         | —       | —                                       |                                     |
| Ditto            | New Ordinary Shares.      | 7                         | —              | —       | } 17,710                                |                                     |
| Ditto            | New Preference Shares.    | 6                         | —              | —       |                                         |                                     |
|                  |                           |                           | £74,080        | £210    | £17,710                                 | £92,000                             |

(B) AMOUNTS AUTHORISED TO BE RAISED AND  
REMAINING TO BE RAISED BY THE COMPANY ON  
MORTGAGE OR BY THE CREATION AND ISSUE OF  
DEBENTURE STOCK.

| Authority.                                                               | How raised.                 | Rate of interest. | Amount raised. | Remaining to be raised. | Total amount authorised. |
|--------------------------------------------------------------------------|-----------------------------|-------------------|----------------|-------------------------|--------------------------|
| The Act of 1895 and the Statutory Companies (Redeemable Stock) Act 1915. | Redeemable Debenture Stock. | 6%                | £ 12,500       | —                       | } 32,500                 |
| The Act of 1911 and the Statutory Companies (Redeemable Stock) Act 1915. | Redeemable Debenture Stock. | 6                 | 7,500          | —                       |                          |
| The Consent of 1921                                                      | Redeemable Debenture Stock. | 7½                | 12,500         | —                       |                          |
|                                                                          |                             |                   | £32,500        | —                       | £32,500                  |



THE SECOND SCHEDULE.

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DESCRIPTION OF PROPERTIES OF WHICH PARTS ONLY MAY  
BE ACQUIRED.

| Parish.                    | Number on deposited plans. |
|----------------------------|----------------------------|
| Newbourn - - - - -         | 7 8                        |
| Kirton - - - - -           | 3 4 11                     |
| Trimley St. Mary - - - - - | 7                          |
| Bucklesham - - - - -       | 15                         |

Printed by EYRE and SPOTTISWOODE, LTD.,  
FOR  
WILLIAM RICHARD CODLING, Esq., C.B., C.V.O., C.B.E., the King's Printer of  
Acts of Parliament.

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